

COLLECTIVE
AGREEMENT
BETWEEN
THE UNIVERSITY OF
SUDBURY/UNIVERSITE DE
SUDBURY
(hereinafter referred to as “the
Employer”)
AND
THE LAURENTIAN UNIVERSITY
FACULTY ASSOCIATION
(hereinafter referred to as “the
Union” or “the Association”)
1 JULY 2018 TO 30 JUNE 2021

Collective Agreement 2018-2021

TABLE OF CONTENTS

ARTICLE 0- PREAMBLE

ARTICLE 1— PURPOSE AND DEFINITIONS

ARTICLE 2 - LANGUAGES

ARTICLE 3 — WORKPLACE ENVIRONMENT

ARTICLE 4 - RECOGNITION

ARTICLE 5 - MANAGEMENT RIGHTS

ARTICLE 6 —ASSOCIATION RIGHTS AND PRIVILEGES

ARTICLE 7 — JOINT UNION-MANAGEMENT COMMITTEE

ARTICLE 8 — FACULTY AFFAIRS COMMITTEE 10

ARTICLE 9 - DEPARTMENT CHAIR 16

ARTICLE 10 — ACADEMIC ACTIVITY 7

ARTICLE 11 -APPOINTMENTS, PROMOTIONS, TENURE 24

ARTICLE 12 - SABBATICAL LEAVE 34

ARTICLE 13 - STUDY LEAVE 37

ARTICLE 14 - LEAVES OF ABSENCE 39

ARTICLE 15 - COPYRIGHT a

ARTICLE 16 - DESIGNATED HOLIDAYS 42

ARTICLE 17 — VACATION 43

ARTICLE 18— HEALTH AND WELFARE BENEFITS

ARTICLE 19 - RETIREMENT AND RESIGNATION

ARTICLE 20 — ANNUAL PROGRESS-WITHIN-THE-RANK
(PWR) INCREMENT 45

ARTICLE 21— FACULTY PERSONNEL FILES 46

ARTICLE 22 - DISCIPLINE AND DISMISSAL 47

ARTICLE 23 - GRIEVANCE PROCEDURE 50

ARTICLE 24 —ARBITRATION 52

ARTICLE 25 - NO STRIKES OR LOCKOUTS 54

ARTICLE 26 — SALARIES AND ALLOWANCES 54

ARTICLE 27 - DURATION 54

SCHEDULE 'A' 55

APPENDIX — MEMORANDUM OF AGREEMENT 63

ARTICLE 0 - PREAMBLE

0.01 The Parties recognize the Catholic heritage and character of the University, and acknowledge its Statement of Mission.

The following principles provide the context for this

Collective Agreement:

(a) Faculty members have a special responsibility as teachers to promote, or at least to respect, the

Catholic identity of the University;

(b) All faculty members are to recognize and respect the distinctive Catholic identity of the University;

(c) The Parties recognize that the University is an independent autonomous institution, notwithstanding the Federation Agreement with Laurentian

University and the commitments arising therefrom.

0.02 Academic freedom

(a) As the fundamental objective of the University is the search for new knowledge and the free dissemination of what is known, academic freedom is essential to its teaching and research activities. The Parties acknowledge their commitment to the pursuit of truth, the advancement of learning, and the creation, interpretation, preservation and dissemination of knowledge. To this end, they agree to abide by the principle of academic freedom, defined as the freedom to examine, question, teach and learn, including the right to investigate, speculate and comment publicly, to carry out research and to disseminate the results thereof. However, in doing so they shall maintain the proper academic tradition of reasonable discussion.

(b) Faculty members shall be: free in the choice and pursuit of research and in publishing the results and conclusions thereof; free in the choice and pursuit of teaching methods and content without deference to prescribed doctrine, consistent with the explicit rights and responsibilities of Senate; free to state their professional views on matters relating to their discipline, free to discuss and criticize, including respectful criticism of the Employer, the Union, and any public or private institution; and free from institutional censorship.

(c) Academic freedom does not require neutrality in expression or attitude, nor does it preclude commitment on the part of the individual. Rather, academic freedom makes commitment possible.

Academic freedom does not confer legal immunity,

Collective Agreement 2018-2021 nor does it diminish the obligations of members to perform satisfactorily their duties and responsibilities in their capacity as professors of the University.

@) Academic freedom also carries the responsibility to respect the right of other members of the academic community — faculty, staff and students — to express their opinions.

(e) The Employer shall not supervise or restrain, nor will it assume responsibility for, what is expressed by a Member acting as a private citizen. However, as scholars, professors shall exercise good judgment and shall make it clear that they are not acting on behalf of the University.

@® The principle and practice of collegial governance are essential for the exercise of academic freedom within the University. Members are entitled to have representatives on and to participate in collegial governing bodies in accordance with their role in the fulfillment of the University's academic and educational mission.

@ The Parties recognize that openness and transparency are components to collegiality and academic freedom.

(h) Academic freedom also entails the right of Members to exercise their civil liberties as individuals, including the right to contribute to social change through free expression on matters of public interest.

@ For the good of the University community as a whole, the Parties recognize and accept their mutual responsibility for the development and maintenance of a culture of academic freedom and the intellectual freedom implied therein.

0.03 Equity

The Parties support the principle of employment equity as defined by Provincial and Federal legislation.

Employment Equity

@ The Parties pledge themselves to work to increase the proportion of faculty Members who are members of the four (4) designated employment equity groups (women, Indigenous people, persons with disabilities and members of visible minorities) to an equitable level in each discipline.

@) To determine an equitable proportion of

Members of the four (4) designated employment equity groups for each discipline, the Parties shall consider among other factors the number of

Doctoral applicants in Canadian universities as revealed by Statistics Canada data.

(c) The University shall provide members with the necessary resources to support non-discriminatory interview and hiring practices.

ARTICLE 1 - PURPOSE AND DEFINITIONS

1.01 It is the purpose of this Collective Agreement to set forth the terms and conditions of employment and other specific contractual provisions, to promote and maintain harmonious relationships between the Parties, to facilitate the Parties in working together to encourage the development of research and teaching necessary for the provision of high quality education to students, and to provide a means for settling such disputes as may arise from time to time.

1.02 Definitions

For the purpose of this Agreement the following words shall bear the definition indicated herein except as otherwise provided in this

Agreement:

1. Academic year shall mean the twelve (12) calendar-month period commencing on the 15 day of July and ending on the 30th day of June following in any year;

Association or Union shall mean the Laurentian

University Faculty Association (LUFA), certified to be the exclusive Bargaining Agent for the full time and sessional (part-time) academic staff of the

University pursuant to the relevant decisions of the

Ontario Labour Relations Board;

Employer or Board shall mean the Board of Regents or its designate as defined in the University of Sudbury Act;

Member or Employee shall mean a Member of the

Bargaining Unit for whom the Union is certified as the exclusive bargaining agent;

Immediate family shall mean: spouse (including common-law, and same-sex spouse), child, stepchild, sibling, step-sibling, parent, step-parent, spouse's parent, sibling's spouse, child's spouse, grandparents, grandchildren;

Parties shall mean the Board of Regents of the

University of Sudbury and the Laurentian University

Faculty Association;

President shall mean the President of University of

Collective Agreement 2018-2021

Sudbury or the President's Board-appointed designate;

8 University shall mean The University of Sudbury;

9. "Working days": Working days shall mean Monday through Friday, excluding Recognized and other Holidays identified in Article 16 — Designated

Holidays and the scheduled December — January recess in a given Academic year.

1.03 Interpretation

In this Agreement, words importing the masculine gender only shall include the female gender and non-binary/transgender persons and vice versa.

ARTICLE 2 - LANGUAGES

2.01 The University is committed to the fulfilment of its role as a bilingual and tri-cultural institution of higher learning.

The Employer and the Union pledge themselves to the maintenance and promotion of the English and French languages, as well as to the revitalization of Indigenous languages.

2.02 Consistent with the commitment in Article 2.01, the

Employer recognizes the right of all members to communicate directly (orally and in writing) with all academic and administrative services of the University in the official language of their choice for all official transactions.

2.03 The two parties shall have the right to be heard in either of the official languages, and to require the translation of any official materials arising out of this Collective Agreement.

2.04 Both the French and the English versions of the collective agreement shall be the official and definitive versions.

Both parties may use either the English or the French version in any proceedings arising out of the collective agreement, and shall apply the version of the collective agreement in which formal grievance/arbitration proceedings were initiated.

2.05 The parties agree to co-operate to have the collective agreement translated within 90 days from the version negotiated at the bargaining table into the other language.

The parties will share equally the cost of the translation.

2.06 Notwithstanding the commitment set out in Article 2.01,

Members may accept to teach in more than one (1) language, but shall not be required to do so.

ARTICLE 3 - WORKPLACE ENVIRONMENT

3.01 No Discrimination — Human Rights Code

Collective Agreement 2018-2021

The Parties agree that there shall be no discrimination, interference, restriction or coercion exercised or practiced with respect to any member in regard to salaries, rank, appointment, promotion, tenure, re-appointment, dismissal, leaves, fringe benefits, or any other matter arising from this Agreement, because of race, creed, colour, age as defined in the Ontario Human Rights Code, sex, nationality, language, ancestry, place of origin, sexual orientation, physical handicap, marital or family status except where such status places the individuals in a conflict of interest. This provision will not apply where discrimination is permissible, or mandated under any statute.

3.02 No Discrimination — Union Activity

The Parties agree that there will be no intimidation, discrimination, interference, restraint or coercion exercised or practiced by either of them or by any of their representatives or members because of any employee's membership or non-membership in the Union or because of an employee's activity or lack of activity in the Union.

3.03 The Parties acknowledge and agree to abide by the

Occupational Health and Safety Act.

3.04 The Parties agree to co-operate in achieving policies and practices aimed at improving security of the physical assets of the University and the personal possessions of members on University premises.

3.05 Support and Facilities

(a) Full-time

In order to ensure that full-time members meet the expectations as listed in Article 10.01, the Employer undertakes to provide members with access to such facilities and support services as it reasonably determines is appropriate. The Employer recognizes the necessity to provide support whenever it places concomitant demands on members. The Employer will provide each full time member with a new, standard computer as determined by the employer, every three years which shall be networked and maintained in good working order without charge to the member or the member's Department/Program.

(b) Sessional

The Employer undertakes to provide sessional appointees teaching live courses in Sudbury with equitably distributed shared office space and access to such other facilities and support services as it reasonably determines is appropriate.

When a sessional is teaching a minimum of nine (9) live credits in any given Academic year, the sessional member

Collective Agreement 2018-2021 shall be entitled to retain his or her office for the year,
The sessional is also entitled to keep library privileges from the date of appointment to 31 August of the following academic year.

Upon request a sessional member teaching off campus will be provided with at T2200 - Declaration of Conditions of Employment.

The Employer recognizes the necessity to provide support whenever it places concomitant demands on sessional appointees, There will be a minimum of seven shared offices available for sessional appointees. Each office shall be equipped with a telephone and one (1) standard computer (renewed every three years) with LAN access to be used collectively by sessional members.

ARTICLE 4— RECOGNITION

4.01 Bargaining unit scope

The Employer recognizes the Union as the certified bargaining agent for all full and part-time academic staff including professional librarians employed by the

Université de Sudbury/University of Sudbury in the City of Greater Sudbury save and except Senior Academic Administrators at or above the level of Dean, and the University Librarian/Library Director.

4.02 The Parties acknowledge that the University benefits when it recognizes Emeritus, Adjunct, and/or Visiting Professors. Such individuals shall be excluded from the bargaining unit unless they are employed to engage in Academic Activity other than research, scholarly and creative activities. They would then be appointed under Article 11.05(a), Limited Term or under Articles 11.07 and 11.08 regarding Sessional Appointments, as appropriate.

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5.01 The Association recognizes that the Employer has retained and shall possess and exercise all rights and functions, powers, privileges and authority that the Employer possessed prior to the signing of this Agreement with the Association, excepting those that are clearly and specifically relinquished or restricted in this Agreement, or modified by statute. The Employer undertakes that all rights and functions, powers, privileges and authority shall be exercised in a manner consistent with the provisions of this Agreement.

5.02 The Employer's failure to exercise any right, function, power, privilege or authority hereby reserved to it, or the Employer's exercise of any such right, function, power, privilege or authority in a particular way, shall not be considered a waiver of the Employer's right to exercise such right, function, power, privilege or authority, or preclude it from exercising the same in some other way not in conflict with the express provisions of this Agreement.

AARTICLES 6S— OCIRIGHTS AND PRIVILEGES

6.01 Election of Union representatives

The Employer acknowledges the right of the Association to appoint or elect representatives according to its Constitution. The Association shall notify the Employer in writing of the names of its constituted representatives upon their election. The Employer shall not be required to recognize any representative until such notification from the Union has been received.

6.02 The Employer recognizes election as a Union representative as part of any member's University, Professional and Community Service, as per Articles 10.04, which includes service on a University committee where Union - representation is required by this Agreement, and 10.05, which includes Union representation in any other capacity.

6.03 The Employer shall recognize Union representation (with voting rights) on the following University bodies:

(a) 1 representative on the University of Sudbury Health and Safety Committee;

(b) 1 representative on the University of Sudbury

Human Rights Advisory Committee.

6.04 Upon request from the union, the Employer shall grant to the duly elected Steward of LUFA-US a course reduction equivalent to one half course (3 credits) in each year of the term of the Steward of LUFA-US. The first workload reduction shall take effect in the regular academic year subsequent to the election of the Steward of LUFA-US. If and when a Sessional appointment is made for the teaching duties of which the Steward of LUFA-US has been relieved, the Association will reimburse the Employer in the amount of the half course Sessional rate. The union will make the request to the President no later than April

30th of the calendar year for the following academic year.

6.05 Dues deduction

The Employer shall deduct from the salary of each Member of the Bargaining Unit, the Association's regular

Collective Agreement 2018-2021 dues or other assessments for general Association purposes uniformly and regularly payable by a Member of the

Association authorized in accordance with the Constitution and by-laws of the Association and certified in writing to the Employer by the Association. The Association shall notify the Employer, in writing, of the amount of its regular dues, and advise the Employer thirty days prior to the date of effect of any change in regular dues.

6.06 Dues remittance

The dues deducted under Article 6.05 shall be remitted in the month following the month of deduction and shall be accompanied by a list of the members from whom dues have been deducted along with the amounts deducted.

6.07 Indemnification

In consideration of the deducting and forwarding of union dues, the Union shall indemnify and save harmless the Employer, its agents and/or employees acting on behalf of the Employer from any and all claims, and/or actions arising out of the collection or attempted collection of such dues as herein provided and from any claims arising from information provided by the Employer under the provisions of this Collective Agreement.

6.08

(a) The Employer shall provide each new appointee, Tenured, Probationary, Limited Term and Sessional, with an electronic copy of this Agreement when providing the candidate an offer of employment.

(b) Following ratification and translation of the Collective Agreement, the employer shall provide all members with an electronic copy.

6.09 Mail

The Association shall have access to the internal and external postal services of the University. The Association shall use stationery marked with LUFA identification in any external mail. The normal practice of charging for external mail will apply.

6.10 Meeting rooms

The Association may use meeting rooms of the University on the same basis as other University organizations. Requests for such use shall be made in advance through the designated University office.

Collective Agreement 2018-2021

6.11 Correspondence with members

An electronic copy of all correspondence between the

Employer and any member, arising from or related to the terms and conditions set out in this Agreement, shall be forwarded to the Association at an email address designated by the Association.

6.12 The Employer shall provide the Union with the following information:

(a) in October of each year:

(i) an electronic and hard copy list of each full-time Member of the Bargaining Unit which includes the name, gender, date of birth, language, department, rank (if applicable), actual salary, nominal salary, extra stipends for each member, type of appointment (whether tenured, probationary or limited term), date of appointment, end of appointment (where applicable), years of service, highest degree, year of highest degree, date of appointment to current rank;

(ii) the teaching workload of all teaching members;

(iii) the names of members who have been granted sabbatical or any other type of leave, the name of each replacement for a member on leave, and the type of appointment of the replacement;

(iv) the professional allowances as per Schedule A, the total amount budgeted for, requested, and expended in the previous year;

(v) The University of Sudbury policies that may impact terms and conditions of employment shall be provided to LUFA prior to implementation.

(b) within 15 days of receipt and/or approval:

(i) a copy of the University's audited financial statements once approved by the Board of Regents;

(ii) a copy of any letters of appointment of all new members who accept employment;

(iii) a copy of all revisions of workloads;

(iv) notice of sessional contract cancellations.

6.13 Any proposals by the Board to amend The University of

Collective Agreement 2018-2021

Sudbury Act, shall be presented to the Legislative Assembly of the Province of Ontario, after consultation with the Union.

6.14 Prior to proposing any changes to the current practices and to the University of Sudbury by-laws regarding faculty membership on Senate and the Board of Regents, the Employer shall discuss the proposed changes with the Union. Such changes shall not be arbitrary or in bad faith.

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7.01 Committee

(a) There shall be a Joint Union-Management Committee consisting of two representatives of the Union and two representatives of the Employer.

(b) The Committee shall meet at the request of either party to discuss matters of concern. Each party shall notify the other party of the proposed Agenda in so far in advance of the meeting as possible, but no later than one week before the meeting.

(c) The purpose of the Joint Union-Management Committee is to discuss items of mutual concern to Administration and Faculty arising from the terms and conditions of employment. The Committee shall not have the power to alter, amend or modify the specific terms of the Agreement, nor to deal with any matter which is in the Grievance Procedure.

ARTICLES — FACULTY AFFAIRS COMMITTEE (FAC)

8.01 Purpose

Recognizing that the process of evaluating applications for sabbatical leaves, renewal, promotion and tenure involves a peer-review process, there shall be a Faculty Affairs Committee, whose purpose is to provide the President with reasoned recommendations on applications from members with respect to:

- (a) renewal of probationary appointments;
- (b) promotion;
- (c) tenure;
- (d) research or travel fund allocation, when available;
- (e) sabbatical leave;
- (f) such other matters as may be referred to the Committee.

8.02 Faculty Affairs Committee Membership

The Committee shall be composed of:

- (a) One tenured member elected by each University Department from among those members;

Collective Agreement 2018-2021

{b) Two members at large elected from the ranks of tenure or tenured tracked members.

{c) A full-time member-at-large elected to serve as an alternate;

(d) The Dean of Arts at Laurentian University, non-voting;

(e) The University Registrar or a senior academic administrator, non-voting, who shall be the Chair and Committee Secretary;

All bargaining unit members of the Committee shall serve a two-year term.

8.03 Date of Application

(a) Timelines

(i) Applications for probationary renewal, promotion, and tenure must be filed by 30 September of each year, and must include all necessary supporting documentation.

(ii) Members on probationary appointments shall normally begin to undergo a formal tenure evaluation by the Faculty Affairs Committee in the final year of their probationary status.

(iii) A member may apply for tenure evaluation one year prior to the final year of his probation. A denial of an early application for tenure is not, in itself, a termination of appointment.

A member may not be considered for tenure more than twice and the denial of an application in the final year of a probationary appointment will result in the termination of employment.

(i) Members shall normally apply for their own promotion. Applications may also be submitted by other members or the President on behalf of members who have not applied themselves where the members have declared their willingness to be considered.

Applications for sabbatical must be made to the member's Chair by 30 September of the year prior to the leave; the department must provide their recommendation to the Faculty

Affairs Committee by October 15 (as per

Articles 12.05 and 12.06).

(b) Leaves and Postponement

@ A member is eligible to apply for promotion while on leave, but the member is responsible for maintaining contact with the University and for all expenses incurred in making appearances when requested.

(ii) A member who has taken a pregnancy / parental / adoption leave may elect to postpone an application for renewal, tenure or promotion for one year per leave taken.

(c) Documents

For the renewal of probationary appointments, promotions and tenure, the applicant shall submit a dossier addressing the items that the

Committee will use to assess the application.

The dossier shall include: an up-to-date curriculum vitae that details the applicant's scholarly research activity and university and community service record; a teaching dossier along with Senate approved student course evaluations; any other material that the applicant deems relevant.

(i) In addition to the documents submitted by the member, the committee will also consider the written evaluation from tenure and tenure track members of the Department to be requested by the Chair of the Faculty Affairs Committee.

Gi) Anonymous material (ie. material submitted without the author's name) will not be considered in assessing the application.

(iv) Submissions concerning any member which do not name the member will not be considered in assessing the application.

8.04 Assessment — Renewal of probationary appointments, promotions and tenure

When an assessment of a Member's performance is undertaken, all committee members shall use only the standards listed below, as applicable.

@ Evaluations of applications shall be based upon an assessment of the members performance in teaching, scholarly activity, and university, professional and community

Collective Agreement 2018-2021 service as set out in Article 10, Academic Activity and, in addition for promotion, Article 11.04, Rank Criteria.

(ii) The nature and scope of past teaching activities shall be taken into account in assessing a Member. If the applicant has faced problems in teaching, the assessors will look for evidence that the applicant has recognized the problems, has taken steps to improve, and has made some improvements that are reflected in independent evidence provided by the member.

(iii) The assessors shall be flexible in assessing stronger performance in some areas against weaker performance in other areas. However, in no instance shall it recommend tenure for an applicant if teaching performance is judged unsatisfactory or if the applicant is not engaged in scholarly activity.

(iv) For renewals of probationary appointments, the Committee shall review prior performance, and provide formative written comments regarding any concerns that the Committee may have about satisfactory performance as well as progress toward and what further is required for tenure.

(v) Promotion shall mean the advancement from one rank to the next higher rank as defined in Article 11.04.

8.05 Conflict of Interest

(a) Applicants and Committee members are responsible to claim or declare a conflict of interest should one exist. Should an applicant wish to make such a claim, the applicant shall provide the Chair with written reasons for it in sufficient time and detail to allow the Committee to assess its merits. An applicant will not be allowed to make such a claim once the Committee has commenced its discussion on the applicant's application. The Chair of the Committee may raise a conflict issue in the absence of an applicant claim or committee member declaration. The Committee shall consider the claim and, should at least three members agree with the claim, the subject Committee member shall not participate in discussions on, or vote on that application.

(b) For the purposes of this Committee, a conflict of interest means an occasion where there is reasonable apprehension that a member of the Committee could

Collective Agreement 2018-2021 benefit or be harmed by the outcome of a decision of the Committee. It is understood that, in a small university, members and applicants will have a number of contexts in which their academic activities connect or intersect, and that claims under this section are restricted to non-trivial and exceptional cases of benefit and harm.

(9) Two weeks prior to the Committee's consideration of any application, the Chair will send to each applicant a list of the Committee members.

(j) Applicants for promotion will not be eligible to serve on the committee for the year in which their application will be considered.

8.06 Procedures

(a) In cases of faculty renewal of probationary appointments, promotion and tenure, as per 8.01 (a),

(b), (c), quorum shall consist of the chair and the five elected faculty members. For other matters before the committee as per 8.01, quorum shall consist of the chair and three elected members. Where an elected faculty member is unable to attend the alternate shall be appointed. The faculty member must contact the Chair to advise of his/her non-attendance so appropriate documentation can be forwarded to the alternate.

(b) Members of the Committee are required to keep strict confidentiality on all matters discussed at meetings, especially the identity and comments of referees.

(c) The Committee shall meet at least quarterly unless there is no business to conduct in that quarter. In the third (fall) quarter, the Committee shall normally not meet prior to 15 October.

(j) For renewal of probationary appointments, promotions and tenure, each committee member shall provide a written statement indicating their vote with supporting reasons to the Secretary. The individual statements shall be appended to the minutes. The Secretary will include in the minutes the recommendation of the committee and a summary of the reasons supporting it. The minutes shall require approval of the committee.

(c) The Secretary shall forward the minutes to the

President. The Secretary shall forward to the applicant and to the Union the relevant recommendation and summary reasons.

(e) All committee documentation shall be maintained by and kept in the office of the Secretary.

(g) Upon request by the Union, the Faculty Affairs

Committee shall meet with the Union President prior to its first meeting of the Academic year to provide an opportunity for the Union President to express the

Union's opinion on the various processes in the

Collective Agreement for items 8.01 (a) to (f) above and to answer any questions that the Committee may have,

(h) Upon request by the University, the Faculty Affairs

Committee shall meet with the President prior to its first meeting of the Academic year to provide an opportunity for the President to express the

University's opinion on the various processes in the

Collective Agreement for items 8.01 (a) to (f) above and to answer any questions that the Committee may have.

(The committee shall issue its reasoned recommendation on sabbaticals, renewals of probationary appointments, promotions and tenure no later than 15 December.

8.07 Recommendation and Appeal

A member may appeal a recommendation by the Faculty

Affairs Committee not to grant tenure or renewal of a probationary appointment or promotion. Such appeal must be forwarded to the Secretary of the Committee within 14 calendar days of the recommendation of the Committee, specifying in writing the grounds for appeal. A notice must also be sent to the President to advise of the appeal. The committee will meet within 14 calendar days to reconsider its recommendation. It shall render a decision at that meeting and its decision on the appeal shall not be subject to further appeal.

The final recommendation of the Committee on promotion or renewal of a probationary appointment or tenure shall be considered by the President, as well as the criteria identified in Article 8.04 in making a decision on an application. The President will provide a written statement of reasons which shall reflect the actual grounds for his or her decision and be substantive in nature. Such decision shall be communicated to the applicant in writing no later than 14 calendar days following the receipt of the recommendation of the Committee.

Grievances concerning renewal of probationary appointment and tenure decisions shall proceed directly to arbitration as set forth in Article 24 Arbitration of Procedures.

8.08 A Lecturer who obtains a doctorate degree shall have an approved promotion to Assistant Professor effective the first day of the month following the Employer receiving a diploma or a letter from the university where the doctorate was obtained indicating all conditions for the doctorate have been met.

9.01 The Chair of the Department shall be appointed by the University President from among the tenured or probationary members of the Department according to Articles 9.02 and 9.03.

9.02 The members of the Department shall settle on a recommendation for the Chair appointment in a manner that is open and fair as determined by the members.

9.03 The recommendation shall be forwarded in writing to the President for endorsement, along with a written explanation for the recommendation. If the President fails to endorse the recommendation of the Department, the

President shall provide a written explanation for non-endorsement to the Department and shall appoint an alternate Chair. Such non-endorsement shall not be arbitrary or in bad faith.

9.04 The term of a Chair's appointment shall normally be for three years.

9.05 Workload reduction

Department Chairs shall receive a six-credit reduction in teaching load for each year they are Chair.

9.06 Duties of Department Chair

Each Department shall have a Chairperson. In addition to responsibilities as a member of the Department, the Chairperson is responsible for providing academic leadership in the Department. The Chairperson serves as the administrative head and spokesperson of the

Department. The Chairperson's responsibilities include:

- (a) managing the operations of the Department;
- (b) overseeing the administration of the Department and ensuring as far as reasonably possible that the members of the Department have an opportunity to participate in the decision-making process;
- (c) designating a deputy and advising the President accordingly in the event of an absence for a period longer than ten working days;
- (d) overseeing the use of space and equipment assigned to the Department;
- (e) chairing departmental meetings or designating a member of the Department to do so;
- (f) representing the Department's interests within the University;
- (g) recommending to the President the teaching duties and allocating other departmental responsibilities to members of the Department, after consultation,

Collective Agreement 2018-2021 whenever possible, with the individual faculty member, and after consultation with all available members of the Department.

(h) convening meetings of the Department at least once each Fall and once each Winter term for the purpose of establishing matters of internal policy, or recommending policy to the appropriate bodies within the University;

(i) providing the Chair designate with information and documents necessary to prepare to assume the office of Chair;

(j) carrying out such other duties related to their

Academic Departments as may be reasonably assigned by the Employer.

ARTICLE 10 —ACADEMIC ACTIVITY

10.01 The Members of the bargaining unit, as academics, are committed to the transmission and creative expression of knowledge, to the clarification and extension of its boundaries, to university governance, and to professional and community service. They are entitled to and are expected to engage in the following activities, in a reasonable proportion varying from individual to individual:

(a) the performance of teaching duties as assigned according to this Collective Agreement;

(b) research, scholarly and creative activities;

(c) University service;

(d) Professional and community service.

The domains of activity identified in this article carry different sorts of implications for the workload of members and may vary according to a member's discipline, from member to member and from year to year for each member.

10.02 Teaching

As teachers, members will pursue conscientiously the development of pedagogical strategies to enhance the learning environment of the University, including openness to the views of others, availability to students, fairness in evaluation and participation in the development of curriculum.

10.03 Scholarly Activity

Each full time member will be entitled to and expected to devote a reasonable amount of time to research, scholarly,

Collective Agreement 2018-2021 and creative activities.

(a) For the purposes of this Collective Agreement the term 'scholarly activity' means:

(i) research directed towards a contribution to knowledge, and the dissemination of the results of that research; and/or,
(ii) participation in those academic activities that contribute to the enhancement, creation and dissemination of knowledge, including membership and participation in appropriate professional and/or learned societies, scholarly conferences, workshops or seminars.

(iii) Research carried out based on traditional/Indigenous knowledge, and the practical applications or dissemination of such research generally, or specifically through engagement with Indigenous communities.

(b) Members are expected to abide by the Tri-Council

Policy Statements on "Ethical Conduct for Research

Involving Humans" as well as the Tri-Agency

Framework: Conduct of Research.

(c) Members are also entitled and expected to disseminate the results of their work and to make these results accessible to the scholarly and

University communities, as well as to the general public.

(d) It is understood by the Parties that research, creative and scholarly duties carry implications that shift according to the different stages in the process, such as background work, fellowship application, and writing or composing.

(e) It is a generally accepted standard of academic performance that this domain of activity requires, but is not limited to, the publication of peer-reviewed scholarly work.

(f) The maintenance of competence and currency in one's field will not count as scholarly activity in the context of promotion.

(g) Members will acknowledge, where applicable, their affiliation with the University and their indebtedness to their colleagues and students.

10,04 University Service

(a) Each full-time member is entitled and expected to share in a reasonable amount of the administrative responsibilities of the University, including participation in Faculty Affairs Committee, Senate,

Board of Regents, and other administrative bodies necessitated by the University's commitments.

(b) Members appointed or elected to administrative bodies undertake to fulfill their duties responsibly and conscientiously.

(c) Those who have a responsibility to appoint or elect members to such positions undertake to be fair and open in those processes.

10.05 Professional and Community Service

Members may have commitments to learned societies, professional organizations, other like associations and agencies, and communities. So long as their work as described in Articles 10.02, 10.03, 10.04 is not adversely affected, these commitments will be supported by the

Employer. Where such support requires Employer resources, such resources will be requested in writing, and not unreasonably refused. Such support shall not include any financial obligation, which remains at the sole discretion of the Employer.

10.06 Other Paid Professional Activities

The nature of the professional competence of many faculty members affords opportunities for the exercise of that competence outside the member's University duties. Since such outside professional activities can bring benefits to and enhance the reputation of the University and the capacities of faculty, the Parties recognize that faculty members have the right to engage in outside paid professional activities, providing that such activities do not interfere with their obligations, duties and responsibilities as full-time employees of the University and subject to the following:

(a) In carrying out such activities, the member shall enjoy the rights and accept the responsibilities described in Article 0, Preamble;

(b) The member shall notify in writing and in advance

* the member's Department Chair of the nature and scope of any proposed non-trivial outside paid professional activity.

The Chair will refer the matter to the University President who will decide whether such activity is in conflict with the member's obligations to the University. The President's decision shall not be arbitrary or in bad faith.

(c) If the President has concerns about the member's outside professional activity (for example, concerns with the amount of time that is devoted to it), the

President will review the situation by requesting clarification from the member and will inform the member of any corrective action that may be

Collective Agreement 2018-2021 required. The President's direction on the corrective action will not be arbitrary or in bad faith;

(@) The member must obtain the prior written permission of the President to use the name and/or insignia of the University, and/or to represent the University and/or to speak on its behalf, in such activities;

©) Where such activities involve the use of University facilities, supplies or services, permission for such use shall be sought from the appropriate University authority. These services shall be paid for at the prevailing rates;

® Outside paid professional activity shall be included in a member's annual report.

10.07 Annual Academic Workload

(a) The President must ensure that the annual academic workload is determined, distributed, and scheduled as equitably as possible. The member's assigned annual academic workload must take into account the four domains of activity indicated in 10.01 and the

Preamble regarding the academic freedom of individual members, as well as factors such as the following:

(i) the needs of the member's program, including student enrolments and the necessity of offering required courses;

(ii) the number of hours of preparation, grading and administration per course;

(iii) whether the member will be responsible for giving unscheduled courses such as directed readings;

(iv) the number of hours of academic counselling and consulting per course;

(v) _ the level (introductory, upper year, graduate, etc.) of each course;

(vi) the assignment of markers or teaching assistants;

(vii) additional hours of preparation for a new course, or for a course substantially revised;

(viii) the relationship of teaching duties to the member's area of expertise;

Gx) the amount of field, research, thesis, and other academic supervision of undergraduate and graduate students;

(x) the method of delivery of each course.

(b) The assigned annual workload shall be communicated in reasonable detail, in writing, to the member by July 1 by the President. A copy shall also be provided to the Association President.

©) Teaching Workload

@ Teaching workloads shall be assigned by the

President upon consideration of the recommendation of the Department Chair pursuant to Article 9.06(g).

Gi) Any proposed changes to a member's teaching load will be raised with the member's department in a timely manner mindful of the demands such changes entail in respect of the obligations imposed by the other domains of activity. Such changes shall not be arbitrary or in bad faith. The explanation for the changes shall be provided by the President in a written form to the Department Chair and to the member.

(iii) Teaching involves both course and programme delivery and related duties such as preparation, assessment and individual student consultation and supervision;

(iv) It shall be a standard that full-time faculty shall have a normal teaching load of 15 credits per academic year, which includes a minimum of

12 credits taught live. This standard is subject to the following:

A. The President may make an exception where a six (6) credit distance course is recommended by the Department;

B. When two courses bearing the same calendar number and title are offered in the same Semester both by correspondence and via Internet, these two courses shall be considered as only one for the sake of determining the workload; and,

(v) In order to achieve the foregoing teaching load standards, the department chair shall forward the recommendations of the department to the

President. The President shall have the responsibility to ensure that:

Collective Agreement 2018-2021

- A. Over a period of two years, the full-time course equivalent (FCE) work load is equitably distributed;
- B. There are enough courses offered by the Department or programme so that, in the event of a cancellation, a full-time member is not prevented from meeting the standards set out above;
- C. The teaching load and full-time course equivalent work load is implemented in the most cost effective manner.
- (d) Where the revision or supervision of a distance education course is part of a full-time member's normal teaching workload, it shall be considered as equivalent to the credit value of the course. The development of a distance education course in this circumstance shall be considered as twice the credit value of the course.
- (e) A teaching assistant shall be assigned to a Member when the enrolment in a live course exceeds sixty (60) students to provide assistance as follows:
- (i) The assistance will be in the form of a marker / grader or a teaching assistant, at the discretion of the Member
- (ii) Assistance will be provided based on the enrolment calculated after the end of the late registration and course change period.
- (iii) A maximum of 180 hours of teaching assistant time will be provided for classes in excess of sixty (60) students for a six (6) credit course
- (iv) A maximum of 90 hours of teaching assistant time will be provided for classes in excess of sixty (60) students for a three (3) credit course.

10.08 Annual Report

All full-time members of the Bargaining Unit shall submit a written Report on their activities for the preceding twelve months, from 1 May to 30 April, to the President by June 22nd, with a copy to their department chairs. The department chairs are not expected to evaluate the report. The report will cover all components of members' activities as described in this Article 10, Academic Activity. In preparing their Annual Report, members shall use the standardized form approved by the University of Sudbury Senate and provided by the President's Office. It is also the responsibility of the members to provide annually an up-to-date C.V. with their Annual Report.

10.09 Accumulating, Borrowing and Reimbursing Teaching

Credits

(a) The Parties agree that it is mutually beneficial to allow Members to accumulate, borrow and reimburse teaching credits. The accumulation and/or borrowing of teaching credits may be requested by Members to their respective departments in the following cases:

I. | The Member proposes to arrange a teaching- reduced or teaching-free term for the purposes of scholarly activity
II. The total teaching credit value of a Member's normally assigned teaching load deviates by no more than six (6) credits from the normal maximum teaching workload

III, Courses assigned as part of a Member's normal teaching workload are cancelled,

(b) Based upon an agreement between the Member and the Department, the Department will recommend the increased or reduced teaching workload to the

President by January of the preceding Academic year.

A Department Chair may not recommend to the

President more than a total reduction of six (6) teaching credits for the department as a whole per Academic year. The President shall not unreasonably refuse such a recommendation.

(c) The accumulation and/or borrowing of teaching credits by a Member does not apply if a 4000 series course is assigned to a full-time Member in excess of the normal teaching workload. The course shall be paid as an overload in accordance with article A.06 of

Schedule "A" and may not be used to accumulate or reimburse teaching credits;

(d) Reduction or increases in a Member's teaching workload in accordance with paragraph 10.10 (a) shall not result in a corresponding increase or decrease in a Member's salary.

(e) Members who owe or who have accumulated teaching credits and leave their employment due to retirement, resignation, death or dismissal shall have their pay correspondingly adjusted using the base rate of pay for sessional Members with establishment in

Schedule "A".

Collective Agreement 2018-2021

(D) Members shall not normally be permitted to accumulate or borrow more than six (6) teaching credits at any given time. Members with accumulated teaching credits may request to reduce their teaching workload by a maximum of six (6) credits per Academic year.

(g) Members owing teaching credits shall increase their teaching workload above the normal teaching workload within three (3) years from the end of the semester during which the credits were borrowed.

ARTICLE 11 — APPOINTMENTS, PROMOTIONS, TENURE

11.01 Preamble

The process of developing recommendations on the appointment of faculty is a peer-review and collegial process. The Employer recognizes that input and recommendation from members of the same discipline as the contemplated appointment are important; however, it is agreed that the Employer determines the faculty complement necessary to carry out its objectives and mission, and final decisions are the responsibility of the Board of Regents and President.

11.02 Ranks of Appointment

All initial appointments of full-time faculty members shall be at one of the following ranks:

Full Professor

Associate Professor

Assistant Professor

Lecturer

11.03 Categories of Appointment

All initial appointments of full-time faculty members shall be in one of the following categories:

Tenured

Probationary (tenure-track)

Limited Term

11.04 Rank Criteria

The following criteria will be used as general guidelines when considering the minimum qualifications of members relative to the indicated ranks. These guidelines are not intended to be used as rigid criteria. Each instance of appointment or promotion will be assessed on its own merits.

(a) Lecturer: the candidate shall hold at least a Master's or equivalent degree, or a baccalaureate degree plus

Collective Agreement 2018-2021 an appropriate professional designation.

€) Assistant Professor: the candidate shall:

@ hold a Doctorate, or,

(ii) a Master's or equivalent degree plus satisfactory performance of the member's duties and responsibilities over a five-year period and demonstrated evidence of scholarly activity.

(©) Associate Professor: the candidate shall:

@ hold a Doctorate or equivalent degree; plus,

Gi) be able to provide evidence of teaching of a good quality; plus,

(iii) be able to provide evidence of scholarly activity of a good quality, including the publication of at least one peer-reviewed scholarly work of substance within a five-year period preceding the date of application for promotion; plus,

(iv) have a minimum of five years' satisfactory performance of full-time Academic Activity at the rank of Assistant Professor.

(d) Full Professor: the candidate shall:

(i) have successfully met all requirements for

Associate Professor and hold a Doctorate; plus,

(ii) have shown evidence of scholarly activity throughout the member's career and after the member's promotion or appointment to

Associate Professor that ranks as a recognized contribution to the scholarly field of the candidate. This work shall be judged by at least three referees, two of whom may be nominated by the candidate. One of the candidate's two nominated referees may be from within the Laurentian University federation but must be external to the University of Sudbury and the candidate's department and joint department. All other referees must be external to the University of

Sudbury and the Laurentian University federation. All referees shall normally be full professors in an academic institution.

All referees shall be qualified to assess the scholarly and creative work of the candidate; plus,

(iii) have accumulated at least ten years of satisfactory full-time teaching at the University level.

11.05 Category Criteria

The following criteria will be used as general guidelines when considering members relative to the indicated category.

(a) Limited Term

@ Limited term appointments are made to vacancies in the bargaining unit that the

Employer has determined are not to be part of its permanent complement. ii) Such appointments carry no implication of renewal or continuation beyond the stated term and no implication that the member shall be considered for promotion or tenure.

Gi) Without restricting the generality of paragraph

(i), limited term appointments are utilized normally for the following:

1. to bring distinguished visitors to the

University;

2. for exchange appointments;

3. to provide replacements for members during absences;

4. to provide replacements for members on leave;

5. to respond to specific academic needs which the University, for academic and/or budgetary reasons, does not wish to make a probationary (tenure-track) appointment;

6. for appointments to programs with provisional funding or of a trial nature.

(iv) Where a member has been appointed for more than three consecutive full academic years, the

Department or programme in which this has occurred shall consider the personnel needs of the Department or programme pursuant to

Article 11.06(b) and the Department Chair or programme head shall make a reasoned recommendation to the President.

() Where the President, under Article 11.06(b), determines that a probationary (tenure-track) hiring is to take place, the limited-term member shall be accorded an interview, subject to fulfilling the advertised criteria established under Article 11.06.

Collective Agreement 2018-2021

(vi) If the limited-term member is hired into the probationary (tenure-track) position, then the member shall receive credit towards the first probationary period equal to the number of years served in the limited term position to a maximum of three years.

(b) Probationary (Tenure-track)

Probationary appointments are defined as appointments lasting up to a maximum of five years, during which the member is afforded the opportunity to demonstrate the member's qualifications for

Tenure,

(i) A probationary appointment contemplates an initial appointment of three years and a re-appointment for two years. A probationary appointment however does not imply re-appointments will be automatic or that tenure will be granted at the end of the appointments or re-appointments; it does imply that the

University will give serious consideration to awarding tenure.

(ii) The initial probationary appointment shall be for three years.

(iii) A subsequent probationary appointment shall be for two years.

(iv) Renewal of a probationary appointment will require satisfactory performance and a clear indication of good progress toward eligibility for granting of tenure.

(c) Tenure

Tenure means permanency of appointment. Such an appointment may be terminated through resignation, retirement, dismissal for cause, or as otherwise stated in this Agreement.

Appointment Procedure

(a) The President, Department members and search committee involved in the appointment procedure shall actively expedite the process.

(b) The Department, through the Department Chair, shall advise the President of personnel needs in the department. Where the President determines that a hiring is to take place, the procedure set out below shall commence.

©) The Department, through the Department Chair, will provide the President with recommendations on the content of the advertisement as set out in (e) below, along with a list of publications in which the advertisement is to appear. The President shall consult with the Department on any changes to the advertisement and shall not unreasonably refuse the recommendations.

(d) The Department shall establish a search committee consisting of at least five persons. The committee shall be comprised of

(i) the Department Chair,

Gi) such members of the Department who are tenured or in the second period of a tenure-track position as the Department determines. If the Department complement does not allow for sufficient committee members under this criterion, then the Department may add other members from other Departments or from cognate disciplines in the Laurentian Federation.

(iii) a student, to be named by the Department, whose studies are primarily in the discipline in which the appointment is to be made;

(iv) a tenured member of another department;

) All new appointments must be advertised within the

University and outside the University in suitable national and/or discipline-specific publications. The advertisements shall include the following information:

(i) The category of appointment;

Gi) The specific academic discipline and, if applicable, specialty sought;

(iii) The qualifications, education, and skills required;

(iv) Any special conditions associated with the position;

(v) Rank;

{vi} The following statement:

"This announcement is directed primarily but not exclusively to

Canadian citizens and permanent residents of Canada. The University of

Sudbury encourages applications from all qualified individuals, including women, members of visible and ethnic

Collective Agreement 2018-2021 minorities, Indigenous peoples, and persons with disabilities.”

® The search committee shall proceed in the following manner:

(i) After reviewing the complete file of each candidate and seeking input from all members of the Department, the selection committee shall provide the President with a short-list of candidates to be interviewed.

After consultation, the President's Office will coordinate the administrative logistics necessary for the Committee to interview the agreed upon candidates.

(ii) Prior to the interview, the selection committee shall provide the candidate with a copy of the collective agreement and the published documents describing the benefits and pension plans currently in effect.

(iii) After interviewing the short-listed candidates and seeking input from members of the Department, the selection committee shall make a written recommendation regarding appointment to the President within ten (10) working days of the final interview. This recommendation shall clearly state the reasons for the recommendation, including how equity provisions were applied. The reasoned recommendation shall include the details regarding the type of appointment, rank, and previous years of service to be taken into account.

@ The President may only make an appointment from the short listed candidates taking into consideration the reasoned recommendation of the Departmental search committee. The President shall not unreasonably refuse the recommendation of the committee. The President shall provide written reasons to the Department for denying the recommendation.

(h) The rank and starting salary of a new appointment shall be established by considering:

(i) the new appointee's classroom teaching of sufficient credits in an academic year equivalent to a full-time appointment, research, scholarly and creative activity, publications and other relevant professional experience;

(ii) the recommendation of the search committee.

(O) The letter of appointment shall indicate the

Collective Agreement 2018-2021

Department to which the member will be assigned.

All appointments shall be made by a standard letter which shall include the following: dates of commencement and termination; rank; salary; type

(ie. tenure-track, tenured, continuing or limited- term, full-time or part-time); credit for years of service; and the description of any special duties or conditions that may apply provided that these are consistent with the collective agreement. All letters of appointment shall be copied to the union.

(j) No appointee shall be deemed to have assumed the responsibilities of his or her appointment until a contract stating the terms and conditions of employment has been provided by the Employer and has been signed by both parties.

11.07 Sessional Appointments

A sessional appointment is a temporary part-time teaching engagement. The Parties recognize that the University's mission is best served by a largely full-time faculty and that it is not generally desirable to make sessional appointments a substitute for full-time faculty. At the same time, the Parties recognize that sessional faculty add a significant level of diversity, expertise and practical experience to the University, and their contribution to the ongoing life of the University is acknowledged.

11.08 Sessional Workload

(a) For teaching live courses, a sessional appointment shall not exceed 18 credits per academic year.

(b) Where sessional members are teaching both live and distance courses, the workload shall not exceed 24 credits per academic year.

(c) Where the President determines that a limited term appointment hiring is to take place, sessional members on the roster shall be given an interview, subject to fulfilling the advertised criteria established in Article 11.06.

(d) When two courses bearing the same calendar number and title are offered by a sessional appointment in the same semester both by correspondence and via

Internet, these two courses shall be considered as only one for the sake of determining the workload.

Establishment

11.09 Members who have taught a given course 3 times within a

6 year period shall be given establishment in the course and first right of refusal when an opening occurs for that

30 of 66

Collective Agreement 2018-2021 given course. If there is no such candidate the Department will defer to the roster process listed below.

Sessional Roster

11.10 The Employer shall maintain a University roster. The roster shall be a list of the members who have taught in 4 live courses in the last 6 years. A member may be removed from the roster if they have rejected 2 courses in 2 successive years, or failed to teach a course in 4 successive years or as outlined in Article 11.13.

11.11 The roster shall include the member's name, email address

(University account or other email as provided by the

Sessional member), courses taught. In October of each year, the roster shall be provided to the Chair of each Department, Sessional Members identified on the roster and the Union.

11.12 Sessional members on the roster will be required to submit to the Departments and the President an up to date teaching dossier and / or evidence of effective teaching and their CV by June 22nd. The President will undertake an annual review of each member of the roster. When there are concerns about a member's teaching performance, the member shall be notified by the President, in consultation with the Department Chairs and be given an opportunity to respond to specific concerns and where necessary take corrective measures.

11.13 Where the problem persists the Departments will review and evaluate the teaching performance and make a written recommendation to the President for removal or maintenance of status on the roster. The sessional member and the Union will be invited to make submissions to the Departments. The President will consider this recommendation and these submissions in making a final decision as to the status of the member.

11.14 Except for where establishment applies, where sessional appointments are being made in a Department, Members from the roster shall be given first consideration provided the member is qualified to teach that specific course. The Employer shall give preference to that candidate in offering that sessional appointment.

11.15 The department shall respect the establishment and the roster process when making its sessional appointment recommendation to the administration. Where more than one candidate meets the criteria in 11.09 and 11.10, then the sessional appointment will first be offered to the candidate with the greatest years of service and if equal then to the candidate with the greatest number of credits.

When there is no qualified candidate on the roster, the

Department and Employer may seek external candidates after the internal process is complete.

Appointment process

11.16 The President shall make Sessional appointments, taking into consideration the reasoned recommendation of the Department in which the appointment is to take place. The Department shall maintain a current roster of individuals for Sessional appointment. The President shall not normally appoint any Sessional member without departmental recommendation. The Union shall receive a copy of all Sessional member contracts.

11.17 When courses are not made part of full-time Member's teaching load the Department can recommend to the President that they form part of a sessional contract.

11.18 By February 1st, the Employer will notify Members with establishment of the anticipated available courses for which they have the right of first refusal. Members with establishment will indicate to the department their intention to exercise this right by February 15th.

11.19 By March 1, the Employer shall provide by email (the University account) to all sessional members on the

Roster, a list of all courses that are anticipated to be available for the upcoming academic year.

11.20 Sessional Members on the roster shall respond to the notice, as described in article 11.19, by indicating their interest to the Department by March 15th. The Department shall meet and send their recommendation for appointments to the President no later than April 15th.

11.21 The application process for external applicants normally consists of the submission of a curriculum vitae, a current teaching dossier and / or evidence of teaching effectiveness, reference letters, and any relevant supplementary information to the Chair of the Department.

11.22 The Employer shall normally issue contracts by 1 July for courses starting in September, 1 November for courses starting in January, and 1 February for courses starting in May.

11.23 Each offer of appointment shall specify the course number(s), the number of credits, terms and conditions of employment including salary, and will reference individuals to the collective agreement for benefits, professional development funds, establishment/seniority, deemed hours and cancellation conditions. A link of the current collective agreement shall be sent with every offer of employment.

11.24 The University is not responsible for expenses incurred by the sessional to attend work wherever the work is located, unless mutually agreed to by the parties.

11.25 Contract Cancellations

(a) The President may cancel a course for which a sessional appointment has been made after consultation with the Department Chair. Before cancelling any course, the President shall take into account the needs of the Department offering the course. The President shall provide a written explanation to the affected department for the cancellation of any course where the student enrolments exceed 4 for courses delivered in French, and exceed 8 for courses delivered in English. The

President's decision shall not be arbitrary or in bad faith.

(b) In the event of a course cancellation, the affected sessional appointee shall be assigned an alternate course in that academic year for which he is qualified, provided that such course is scheduled and has not been assigned to another Member. For clarity purposes, the cancellation of a course shall not provide a sessional Member with any displacement rights. The provisions of Sessional course cancellation in Schedule A, shall also apply.

(c) No sessional appointee shall be deemed to have assumed the responsibilities of his or her appointment until a contract stating the terms and conditions of their employment has been provided by the Employer and has been signed by both parties.

(d) Employment Insurance

(i) The parties agree that for Employment

Insurance purposes only, a course instructor for a full course will be deemed to have worked 375 hours, and a course instructor for a half course will be deemed to have worked 187 hours.

(ii) For distance education courses deemed hours will be calculated at the rate of 8 hours/ student for 6 credit course to the maximum listed above.

(iii) The parties agree that this agreement is strictly for Employment Insurance purposes only, and is without prejudice to the positions of the parties, and shall in no way affect the interpretation, application, and administration of the Collective Agreement provisions and any University policies and practices, and shall not be relied on or referred to in any proceedings other than those under the Employment Insurance Act or Regulations.

11.26 Sessional members are entitled but not obligated to participate in Departmental meetings. Such participation

Collective Agreement 2018-2021 will be on a voluntary basis, and will not be remunerated.

11.27 A Sessional appointee is entitled to only those provisions of this Collective Agreement set out in Articles 0-7, 11.07— 11.25, 15, 21-26.

11.28 Senior Academic Administrators

While retaining the right to appoint Senior Academic

Administrators, the Employer recognises the usefulness and desirability of consultation with Members and Departments, in their selection, and appointment of Senior

Academic Administrators. The Employer shall consult in regard to both the process and the actual selection of Senior Academic Administrators.

A Senior Academic Administrator who ceases to hold administrative office but who continues as a full-time teaching employee of the University shall become a member of the bargaining unit.

11.29 No probationary or tenured member shall be displaced by the entry or re-entry of former senior Academic Administrators.

11.30 For all purposes relating to this Agreement, membership in the bargaining unit of a Senior Academic Administrator shall be reckoned as if they had not been outside the bargaining unit during their term of office.

AR12T— SAIBBCATICAL LEAVE

12.01 Purpose

The purpose of sabbatical leave is to foster the pursuit of knowledge and serve the academic and scholarly objectives of the University by affording members a regular opportunity to devote their energies entirely to research and study. The Parties to this Agreement acknowledge a joint responsibility to encourage the effective use of sabbatical leaves so as to strengthen the

University in the achievement of its objectives.

12.02 All tenured members are eligible for sabbatical leave on the basis of up to one full year's leave after six years of employment since the last sabbatical, or up to one half year's leave after three years of employment since the last sabbatical. A member is eligible for an initial sabbatical leave only after 6 years of full-time employment at the University of Sudbury in a tenure or tenure-track position.

If the elected chair is eligible for a sabbatical during their term, then the department will ensure that an alternate

Collective Agreement 2018-2021 chair is selected six (6) months in advance of the sabbatical leave period.

12.03 For the purpose of eligibility for sabbatical leave, a member who has been employed by the University on a full-time basis in a limited term position and who is subsequently hired into a tenure-track position within no more than three academic years of the last term appointment shall have all service in the limited term appointments for the previous six years counted to a maximum of three years.

12.04 Leaves shall commence on July 1. A six-month leave may also commence on January 1.

12.05 A member requesting a sabbatical leave shall provide the member's Chair with a dossier by 30 September of the year prior to the leave, and it should include:

(a) the report of the previous sabbatical;

(b) an outline of the proposed plans which explains why and how these should contribute to the member's scholarly, pedagogical or professional development;

(c) an updated curriculum vitae;

(d) an explanation of the locale chosen;

(e) a summary of the member's preparation for that project;

(f) a statement of scholarly and/or professional achievements since the previous sabbatical;

(g) and, where applicable, plans to take paid employment elsewhere,

12.06 A Department must recommend to the Faculty Affairs

Committee on all applications for sabbatical leave by

October 15.

12.07 Faculty Affairs Committee Recommendation

The Faculty Affairs Committee shall prepare a recommendation for or against approval of the application for sabbatical leave, including in the recommendation its assessment of the academic merits of the project and shall forward its recommendation to the President by December

15.

12.08 The President shall review the Committee's recommendation and if the President disagrees with it, the President shall refer the matter back to the Committee with a clear statement of the area(s) of disagreement. The Committee shall then reassess the member's application in light of the President's written statement and make a final recommendation to the President. The President's decision shall not be arbitrary or in bad faith.

Collective Agreement 2018-2021

The President shall transmit the decision to the member no later than 15 January of the academic year preceding that in which the leave is to take place.

12.09 A member who takes a 12-month sabbatical leave shall receive a sabbatical stipend of 85% of the member's regular salary. A member with six actual consecutive years of service who is taking a first sabbatical shall receive a sabbatical stipend of 100% of the member's regular salary.

The Employer may require that a one year sabbatical be delayed up to one year due to departmental or administrative reasons provided to the member in writing by the President, with reasonable notice and after consultation with the member's Department. In such cases, there will be a 5% increase in the sabbatical stipend.

Upon return, all accumulated years of eligibility entitlements shall be exhausted.

12.10 A member who takes a half sabbatical leave shall receive a sabbatical stipend of 85% of the member's regular salary.

The Employer may require that a half year sabbatical be delayed up to one year due to departmental or administrative reasons provided to the member in writing by the President, with reasonable notice and after consultation with the member's Department; in such case, there shall be an increase of 2.5% in the sabbatical stipend for each 6 months of delay. Upon return from a half sabbatical leave, three accumulated years of entitlement, plus any period of delay, shall be exhausted. A member who takes a six-month sabbatical in an academic year shall be required to carry a 9-credit teaching load in the six month non-sabbatical period of that year.

12.11 The member may apply to receive part of the stipend as a research grant to cover research and travel expenses. The member is responsible for making the proper applications in accordance with the applicable provincial or federal statutes.

12.12 A sabbatical leave includes the accumulation of vacation entitlement proportional to the length of the leave.

12.13 A member on sabbatical leave shall continue, subject to the terms of such policies, to be covered by the University's group benefit plans, and the Employer shall continue its normal contributions toward the premium costs for such plans.

12.14 The Employer and the member shall continue normal percentage contributions toward the member's pension plans based on the member's regular salary. The period of leave shall be included as credited years of service in determining University pension benefits.

Collective Agreement 2018-2021

12.15 A member on sabbatical leave shall receive any increments paid to members of the same rank upon submission of the sabbatical report and a favourable performance assessment in accordance with Article 20.

12.16 Time spent on any other type of leave with a period of more than six months, including LTD leave, shall not count toward the eligibility requirements.

12.17 Members on sabbatical leave shall continue to be members of the bargaining unit and enjoy all duties and obligations, rights and privileges arising there from.

12.18 While on sabbatical leave, a member may accept, with the prior written permission of the President, paid employment outside the University of Sudbury. Permission to accept outside employment which is related to the academic purposes for which the sabbatical leave was granted shall not be unreasonably withheld.

12.19 A member who is on sabbatical shall report to the

University all non-trivial income for professional services from sources other than the University. Such income (including salary, professional fees, and research stipends) together with the sabbatical salary continuation shall not exceed 100% of the faculty member's normal University income plus reasonable research, travel, and associated expenses. Where such total is exceeded, the sabbatical salary will be correspondingly reduced.

12.20 Immediately following the completion of a sabbatical leave, the member is required to return to the University for a period equal to the length of the leave taken, or to satisfy some other arrangement that is mutually acceptable to the member and the Employer.

12.21 Within 28 calendar days of the date of return to the

University from a sabbatical leave, the member shall submit to the President a written report of scholastic or professional activities undertaken during the leave. The report shall become part of the member's personnel file.

ART 13 STUDY LEAVE

13.01 A study leave with pay is granted to enable a member to pursue a program of study of benefit to the member and in order to meet specific needs of the University. Study leave periods may vary. Vacation entitlement shall be proportional to the length of the leave.

13.02 A member on study leave shall receive 40% of the member's annual salary to a maximum of \$25,000 (pro-rated for leaves of less than one year). Time spent on any

Collective Agreement 2018-2021 other type of leave with a period of more than six months, including LTD leave, shall not count toward the eligibility requirements of three years, nor toward years of service for the purpose of determining salary while on study leave.

13.03 At the member's option, the Employer and the member shall continue normal percentage contributions toward the member's pension plans based on the member's regular salary. If normal pension contributions are continued, the period of the leave shall be included as credited service in determining University Pension benefit.

13.04 A member on study leave shall continue, subject to the terms of such policies, to be covered by the University group benefit plans, and the Employer shall continue its normal contributions toward the premium costs for such plans.

13.05 A member on study leave shall receive any increments paid to members of the same rank upon a favourable performance assessment in accordance with Article 20.

13.06 Members on study leave shall continue to be members of the bargaining unit and shall continue to have dues deducted from their salaries,

13.07 A member seeking study leave shall submit a written application to the member's Department Chair by 1 October of the year immediately preceding the academic year for which the leave is requested. The application shall include the following information:

(a) the period of the leave;

(b) a statement of the proposed program of study and of its academic value to the member and to the University; and,

(c) the way in which the member's accomplishments will be reported to the President.

13.08 Before 15 December, the President, on the advice of the

Department Chair, shall notify the applicant in writing whether the study leave has been approved, and shall state the reasons in case of non-approval of such an application.

A successful applicant may cancel the leave by notifying the President in writing no later than 31 January.

13.09 It is understood that a member shall be required to return to the University for a period not less than the study leave, or to repay the amount of the stipend.

13.10 Within 28 days of returning from study leave, the member must prepare and forward to the President a full written account of the scholastic activities undertaken during the study leave. The report shall become part of the member's personnel file.

14.01 Leave of Absence without pay

A member may apply for and the Employer may grant a leave of absence without pay. The member shall apply in writing to the President, who shall consult with the member's department. The President shall approve or deny the leave in writing to the member, with a copy to the

Union. If the leave is approved, the terms of the leave shall be set out in the written notification. A member granted such a leave for the purposes of taking employment elsewhere who wishes to maintain such group insurance coverage as is permissible by the terms of the plan shall be responsible for payment of the total premium cost.

14.02 Public Service Leave

Members who are candidates for election are entitled to paid leave for the duration of the writ, or in the cases of regional, municipal, or school board elections, from Nomination Day until the end of the election.

14.03 Court Leave

Paid leave shall be granted to any member who is called for jury duty or who is compelled by subpoena to attend as a witness by any body in Canada with powers of subpoena.

The member shall notify the Chair of the member's

Department and the President and shall supply the

President with a copy of the summons. The member and the Department shall make alternative arrangements to meet the member's responsibilities. Members on Court

Leave shall accumulate credit in all matters as if they had not been granted any form of leave and will lose no rights or privileges as a result of being on court leave.

14.04 Pregnancy Leave

(a) Up to seventeen weeks of Pregnancy Leave will be granted in accordance with the Employment Standards Act, 2000 (Ontario), as amended.

(b) A full-time Member who is on Pregnancy Leave, who has applied for and is in receipt of Employment Insurance benefits pursuant to Section 22 of the

Employment Insurance Act, shall be paid a supplemental employment benefit. During any week(s) in this period for which EI benefits are not payable, the Employer shall pay 100% of the member's regular weekly earnings. During the weeks for which EI benefits are payable, the

Employer shall supplement the EI benefit to the amount equivalent to 100% of the full-time

Collective Agreement 2018-2021

Member's nominal earnings, less the usual statutory and other deductions. Such payment shall commence following receipt by the Employer of the full-time

Member's Employment Insurance cheque stub as proof that she is in receipt of Employment Insurance maternity benefits. Payment of the supplemental employment benefit shall continue for a maximum period of seventeen (17) weeks, which includes the period for which EI Benefits for maternity are not payable.

(c) In addition to the foregoing conditions, to qualify for supplementary unemployment benefits during her Pregnancy Leave, the Full-time member must:

(i) Have completed at least twelve months of continuous full-time active service with the University of Sudbury immediately preceding the Pregnancy Leave.

(ii) Give at least two weeks' written notice to the Employer of the intent to take Pregnancy

Leave and the date that she intends to commence the leave.

(d) The member shall continue to accumulate vacation credits and seniority during her Pregnancy Leave.

Group Benefits and Pension contributions (based on 100% salary) continue during this period.

(€) Any period of absence immediately preceding or following such Pregnancy Leave not covered under another leave provision shall be considered to be a leave of absence without pay except that the

University will continue to pay its share of Group

Benefits premiums during a Parental Leave if the employee agrees in writing to pay her share.

® Immediately following the completion of a Pregnancy

Leave and any related leave of absence without pay, the employee is required to return to work for a period equal to the length of the Pregnancy Leave taken (normally 17 weeks). Failure to do so will result in a requirement to repay the

Supplemental

Unemployment Benefits to the University.

14.05 Parental Leave

@ On the occasion of the birth of a child, surrogacy or adoption of a child coming into the care or custody of a parent for the first time, parental leave will be granted, in accordance with conditions contained in the Employment Standards Act, 2000, as amended.

Collective Agreement 2018-2021

During the period of parental leave a full-time member shall receive from the Employer for the first five days 100% of her/his nominal salary after the employee has worked a minimum of 12 months of continuous service. If the Member on Parental leave has applied for and is in receipt of Employment

Insurance benefits pursuant to Section 23 of the

Employment Insurance Act, this amount shall be paid as a supplemental employment benefit. That benefit will be equivalent to 100% of the full-time Member's nominal earnings, less amount of the EI benefit and the usual statutory and other deductions.

14.06 Compassionate Leave

A full-time Member, who holds a tenured or probationary appointment within the University, shall be eligible for a paid leave of absence for a period of up to a maximum of 3 days per calendar year to fulfill responsibilities relating to the special needs of a member of the Employee's family.

Special needs may include, but are not restricted to, resettlement of aged or disabled parents, serious illness of parents, partner, or child, medical treatment of partner or child that cannot be provided in the Sudbury Region. The teaching/professional and service responsibilities of

Members on this leave shall normally be assumed by their colleagues without additional expense to the University.

14.07 Bereavement Leave

In the event of the death of one of a member's immediate family, the member shall be granted a leave of up to five consecutive working days without loss in pay in order to make arrangements for and/or attend the funeral.

"Immediate family" shall mean: spouse (including common-law and same-sex spouse), child, stepchild, sibling, step-sibling, parent, stepparent, spouse's parent, sibling's spouse, child's spouse, grandparents, grandchildren.

ARTICLE 15 — COPYRIGHT

15.01 Copyright applies to all original written, artistic, and recorded works. Works include but are not limited to: books, texts, articles, monographs, glossaries, bibliographies, cartographic materials, modular posters, study guides, laboratory manuals, correspondence course packages, interactive textbooks, course work delivered on the Internet, multimedia instructional packages, syllabi, tests and work papers, lectures, charts, transparencies, other visual aids, video and audio tapes and cassettes, computer programs, live video and audio broadcasts, programmed instructional materials, drawings, photographs, and other works of art.

15.02 Vested in Member

Except where copyrightable materials are commissioned by the Employer, or produced for assessment, grading, report, or correspondence pursuant to a member's normal administrative and teaching duties within the University, the copyright to all forms of written, artistic, and recorded works shall be retained by the member(s) responsible for the origination of the materials. Such materials shall not be published, licensed, or released in any way, or amended, edited, cut, or in any way altered, without the written consent of the member(s) holding copyright. The holder(s) of the copyright shall have the complete rights to proceeds of its exploitation.

15.03 Vested in Employer

The copyright to materials commissioned by the

Employer, or produced for assessment, grading, report, or correspondence pursuant to a member's administrative and teaching duties within the University shall rest with the

Employer, unless otherwise specified by agreement in writing between the originator(s) and the Employer. Any additional compensation to the member(s) arising from the commission, any shared distribution of the costs of production, and any shared distribution of any proceeds arising from the exploitation of the copyright, shall be agreed in writing between the member(s) and the

Employer.

15.04 Where a member carries out original research for the purposes of developing materials commissioned by the Employer, the member may use the research to produce other scholarly material provided that credit is given to the Employer for the original commission and an acknowledgement that the copyright for the commissioned material remains with the Employer.

ARTICLE 16— DESIGNATED HOLIDAYS

16.01 The following are designated holidays at the University:

New Year's Day Family Day

Good Friday Easter Monday

Victoria Day Canada Day

August Civic Holiday Labour Day

Thanksgiving Day Christmas Day

Boxing Day

16.02 The following may be designated holidays, if and when declared by the Employer:

Holy Thursday part-day

Feast Day of St Ignatius Loyola

Christmas recess

16.03 Members shall receive designated holidays off from work without any loss of regular earnings.

ARTICLE 17-VACATION

17.01 Full-time members are entitled to vacation on the following basis:

(a) Members with less than one year of service shall receive vacation on the basis set out in the Employment Standards Act;

(b) A member who has completed one year of continuous service as of 30 June in any year shall receive vacation in the twelve months following of one month or 23 working days;

(c) A member who has completed more than five years of continuous service as of 30 June in a year shall receive vacation in the twelve months following as set out in (b) above plus an additional day for each year in excess of five up to a maximum of 35 working days.

17.02 Members on sabbatical or study leave will be deemed to have used up, during their leave, all their vacation entitlement accrued prior to the commencement of the leave. On 1 July next occurring after or coincident with the member's return from leave, the member shall receive the normal vacation entitlement set out above, prorated where appropriate.

17.03 Members are required to take the vacation to which they are entitled. Vacation may not be accumulated from year to year.

17.04 Members will continue to receive their normal earnings during vacation periods, but there shall be no remuneration in lieu of vacation in the event that a member chooses not to take the vacation entitlement.

17.05 Members shall schedule their vacation between 1 June and Labour Day, unless prior permission for another time has been granted by the President.

17.06 Members may take their annual vacation at any time in the period set out above provided:

(a) the period of the vacation does not conflict with a time during which the members have scheduled duties assigned to them, and,

(b) the members have advised the Treasurer of their vacation dates by 15 May.

ARTICLE 18 — HEALTH AND WELFARE BENEFITS

18.01 The following benefits are available to full-time members as a result of the Employer's participation in the Group Insurance plans in concert with Laurentian University:

Pension Plan

Group Life Insurance Plan

Accidental Death and Dismemberment Plan

Dependent Group Plan

Extended Medical Plan

Long-Term Disability Plan

Dental Plan

Semi-private Hospital Coverage

18.02 The Parties agree to continue the current practice of participation in the existing plans.

18.03 Short-term Disability

(a) There shall be a short-term sick credit accumulation bank.

(b) Full-time members shall accumulate sick credits at the rate of 1 % sick leave days per month of active service to a maximum of 120 sick day credits.

(c) Where a full-time member is absent due to legitimate illness, the member may draw sick credits from the bank to the extent of the member's accumulated credits, in order to maintain regular salary only.

(d) The member shall inform the President as soon as possible of the member's illness so that adequate alternate arrangements can be made to fulfill the member's duties.

(e) The Employer may, with reasonable notice, request that the member provide an acceptable medical certificate stating to the extent possible the impact on the member's ability to perform the duties required of the member and the prognosis with respect to the member's ability to return to work.

ARTICLE 19 — RETIREMENT BENEFITS

19.01 The possible retirement dates of a member and the provisions for early retirement under the University pension plan are governed by the terms of the plan to which the University belongs. All leaves to which the retiring member would be entitled must be terminated at the member's retirement date.

19.02 Members who retire from the University shall retain their name and title on the University website, same privileges at the University library as full-time members, access to

Collective Agreement 2018-2021 parking facilities and any other benefit of University facilities, including a designated space, which may be granted to the retiree at the President's sole discretion.

19.03 Normally a member may resign effective 30 June or 30

December, with at least one month's written notice to the

President, All leaves to which a resigning member would be entitled must be terminated at that date.

19.04 Employment may be terminated at any time by mutual written agreement between a member and the President.

(PWR) INCREMENT

20.01 Increments are awarded to full-time members on the basis of an annual performance review of a member's activities in the domains set out in Article 10.

20.02 The annual performance review will be conducted by the

President.

20.03 When a member's performance is judged to be satisfactory by the President, the annual progress-within-the-rank increment shall be awarded by July 31st. If the performance assessment is not completed by July 1st, any increment will be provided retroactively if the member's performance is judged to be satisfactory.

20.04 Where the President has concerns about the performance of a member with respect to academic activity as set out in

Article 10, the President shall provide the member with a statement of the concerns no later than July 31st.

(a) The member shall have until 31 August to respond in writing to the concerns.

(b) In the case where the written response of the member does not satisfactorily address the President's concerns, the matter shall be referred to the Faculty

Affairs Committee with written reasons substantiating the referral to the Faculty Affairs

Committee.

(c) The Faculty Affairs Committee shall review the member's performance, the written concerns of the President and the submission from the member, if any. The Committee shall provide a recommendation to the President as to whether the performance is satisfactory or unsatisfactory along with written reasons for the recommendation and the submission from the member, if any. A copy of the recommendation along with the written reasons shall be sent to the member at the same time. The recommendation of the Committee shall be issued within 28 calendar days of the referral from the

45 of 66

President.

(d) The President will review and consider the recommendation of the Faculty Affairs Committee and shall make a final decision referencing relevant articles of Article 10. When the decision involves accepting a positive recommendation, the increment shall be applied retroactively to July 1st.

20.05 A member will be notified of the awarding or non-awarding of an increment no later than the latest of 30 September or within 21 calendar days of the recommendation of the Faculty Affairs Committee. Where the increment is not awarded the President shall provide written reasons for the decision.

A Member shall have the opportunity for reinstatement of the increment, as follows: A reinstatement of the increment shall occur July 1 of the academic year after the Member receives two (2) consecutive satisfactory annual assessments from the President, or after the Member receives a promotion in rank. The reinstatement amount shall be equal to the amount of the PTR denied.

20.06 Where an assessment involves members on a sabbatical ending June 30th all timelines identified in 20.04 shall be extended by 5 weeks from July 31st. Awards shall be provided retroactively to July 15.

20.07 When, in a particular year, members are promoted to a higher rank, the progress-within-the-rank increment for that year will be made at the higher rank.

20.08 A denial of a progress-within-the-rank increment, in and of itself, shall not be considered a form of discipline. When the withholding of such an increment is to be used as a disciplinary measure, it shall be applied in accordance with Article 22 (Discipline and Dismissal).

ARTICLE 21 — FACULTY PERSONNEL FILES

21.01 Official personnel files of a member shall be kept by the President and are the property of the Employer.

21.02 Members shall have the right to examine all of their personnel files, upon making prior arrangements to do so. Material in the files which is to be held confidential according to the provisions of this Agreement will be removed from the files prior to their inspection by the member. However, an inventory of this confidential material will be provided to the member.

21.03 Members shall have the right to have their files supplemented or corrected in the event of error or inadequacy. Members shall have the right to provide

Collective Agreement 2018-2021 additional material for inclusion in their personnel files.

21.04 No anonymous material (i.e. material submitted without the author's name) concerning any member shall be kept by the Employer for inclusion in the member's personnel file.

21.05 Letters of assessment received in relation to the appointment of a member shall be confidential and shall not be submitted as evidence in any subsequent proceedings,

21.06 Student evaluations, in numerical or written form, shall not be admissible as evidence in any process involving a member's tenure, promotion, or dismissal if such evaluations are more than five years old.

21.07 Members may request the President to provide one copy of their personnel file, excluding confidential material according to the provisions of this agreement but including the inventory thereof. Such requests will be filled within five working days, at no charge to the member. One copy of additions made subsequent to the initial copying may be requested under the same conditions and terms. Requests for additional copies will be filled at the convenience of the President.

ARTICLE 22—CIPLANDIDNISMISESAL

22.01 Discipline and dismissal

(a) A member shall be disciplined only for just cause.

The disciplinary measures taken shall be commensurate with just cause and the principle of graduated discipline.

(b) Just cause must be interpreted in the context of a university environment including the principles of tenure.

(c) Discipline shall be imposed only in compliance with the principles of natural justice and due process.

Accordingly, the Member has a fundamental right to know, in a timely manner, the nature of the allegations against him/her, and the right to respond to such allegations.

22.02 Discipline other than Dismissal

(a) "Just cause" for discipline other than dismissal shall include:

(i) _ serious unprofessional behaviour;

(it) failure to comply with any of the provisions of this Agreement, minor technical violations excepted;

©) The following are the only formal disciplinary measures that may be taken by the Employer against a member:

(i) _ A formal written reprimand to the member, specifying the grounds and adding the reprimand to the member's personnel file;

(ii) The suspension without pay of a member for a period of one day to four weeks, The member shall forfeit pay on the basis of 1/52 of normal annual salary for each week of suspension, on a prorated basis. The suspension may, at the President's discretion, be scheduled so as not to interfere with a member's teaching duties;

(iii) The withholding of an annual increment.

©) When the Employer becomes aware of a matter that may lead to the imposition of discipline under this Article, including investigations triggered by a formal complaint pursuant to a discrimination and harassment policy, the Employer shall commence an investigation within twenty (20) Working days or as soon as is reasonably possible. Except in circumstances where to do so would compromise the integrity of the investigation, the Member and the Union shall be notified in writing of the nature of the allegation(s) upon commencement of the investigation. The investigation shall be completed within forty (40) Working days of its commencement or as soon as is reasonably possible.

@) As part of the investigation, the Employer shall schedule a meeting with the Member and his/her

Union representative. The Member and her/his

Union representative shall be given five (5) Working days' notice of the time and place of the meeting wherever possible or practicable. The Employer shall also provide with the notice of meeting full particulars of the allegation(s) against the Member, including the name(s) of any complainant(s). At the meeting the Employer shall provide the Member with the opportunity to respond to these allegations.

@ When contemplating disciplining a Member following an investigation, the President shall meet with the Member and his Union representative within 20 Working days of the conclusion of the investigation to review the matter with the Member.

@ The Member and his Union representative shall be given five (5) Working days' notice of the time and place of the meeting wherever possible or practicable along with a summary of the factual findings of the investigation. The President shall consider the representation of the Member and Union prior to the

Collective Agreement 2018-2021 imposition of discipline.

(g) Within five (5) Working days of the meeting the

President shall notify the Member and Union in writing as to whether discipline shall be imposed. If discipline is imposed, the notice shall provide the nature of the disciplinary action, the reasons for it and the event(s) or conduct being relied upon to support it.

(h) Any record of discipline shall be removed from a

Member's personnel file after a period of twenty-four (24) months from the date of the alleged infraction provided that no subsequent infractions of a similar nature have occurred within that period, excluding periods of leave with or without pay of three (3) months or longer. A Member may not claim that the Member's disciplinary record is clear for more than twenty-four (24) months if that has not been the circumstance.

22.03 Dismissal

(a) "Dismissal" means the termination for just cause of a limited term appointment or a probationary appointment before the normal end of the stated term, or the termination of a tenure appointment for cause at any time other than normal retirement and excludes:

(i) _ the non-renewal of a limited term appointment

(i) the non-renewal of a probationary appointment,

(iii) a decision to not grant tenure,

(iv) a termination which is mutually agreeable between the Employer and the member.

{b) "Just cause" for dismissal shall include:

@) gross misconduct;

(ii) _ a record of discipline indicating a persistent failure to discharge academic responsibilities as defined in this Agreement either through incompetence or neglect of duties, in keeping with the principle of graduated discipline.

(cy When considering the possibility of dismissal, the investigation shall be completed in accordance with paragraphs (c) to (f) of Article 22.02.

(d) Within five (5) Working days of the meeting referred to in Article 22.02 (f), the President shall notify the

Collective Agreement 2018-2021

Member and Union in writing as to whether dismissal shall be imposed. If dismissal is imposed, the notice shall provide, the reasons for it and the event(s) or conduct being relied upon to support it.

(e) Where the President is satisfied that there is just cause for dismissal, the President shall notify the member and the Union as to this conclusion and request that the member meet with the President and such other persons whose presence at the meeting the President may wish. At this meeting, the member shall be accompanied by a Union representative.

@ If the member refuses to meet with the President, the member and the Union shall be informed in writing by the President of the reasons for the dismissal.

Such information shall be sent by registered mail to the member's last known address on record with the Employer.

If the member's whereabouts are unknown to the Employer and the Union, the meeting described in

(d) above is not necessary and the notice of dismissal shall be sent to the Union immediately.

(@) Cases involving the inability of a Member to perform normal duties by reason of physical or emotional illness shall be treated separately from cases for disciplinary measures. If sickness or disability is proven, leave shall be granted and the case dealt with within the sickness and disability provisions of this Agreement. In exceptional cases when behaviour providing grounds for disciplinary measures is judged to be due to illness and the Member refuses to be placed under the sickness and disability provisions of this Agreement, disciplinary procedures may be initiated.

ARTICLE 23— GRIEVANCE PROCEDURE

23.01 Definitions

For the purposes of articles 23 and 24 herein, the following terms shall mean:

(a) Complaint: any difference arising from the interpretation, application, administration or alleged violation of the collective agreement that a Party submits in writing to the other Party in accordance with Step 1 of the grievance procedure set out below;

(b) Grievance: Any difference arising from the interpretation, application, administration or alleged violation of the Collective Agreement that the Parties have not been able to resolve at the Step 1 of the grievance procedure set out below and any question as to whether a matter is arbitrable in accordance

Collective Agreement 2018-2021 with the Labour Relations Act, 1995;

(c) Grievor: The grievor is either the Union which initiates a grievance against the Employer on behalf of a Member or group of Members or itself, or the Employer which initiates a grievance against the Union, an individual Member or a group of Members;

23.02 There shall be no discrimination, harassment or coercion, of any kind practised against any persons involved in these procedures.

23.03 The Parties agree to make every reasonable effort to settle all grievances in a just, prompt, and equitable manner according to the following procedure:

Step 1: Complaint Stage

It is understood that there shall be no grievance until the union has first given the appropriate administrative decision-maker the opportunity of rectifying the complaint. Such complaint shall be discussed with the decision-maker within 30 Working days after the circumstances giving rise to it have occurred, or ought reasonably to have come to the attention of the union. The decision-maker shall provide a written response within 21 Working days of the discussion.

If the complaint is not settled, it shall be referred at Step 2 to the President within 21 Working days of the response of the decision-maker.

Step 2: Written Grievance

The Union shall submit a written grievance to the University President within 21 Working days of the response at Step 1.

The grievance shall identify the nature of the grievance, the specific provisions of this Agreement that are alleged to have been violated, and the remedy which is sought.

A meeting will be held within 21 Working days of the submission of the grievance between the Employer's representatives, the Union, and the member(s) affected, at his or their request. The parties shall make reasonable efforts to resolve the grievance and the Employer's response shall be given in writing within 21 Working days of the meeting.

23.04 Employer Grievance

(a) The Employer shall have the right to lodge a grievance with the Union concerning the meaning, application or interpretation of any provision of this

Agreement commencing at Step 1 of the grievance procedure. The grievance shall be filed in writing with the Union by the President or designate within

21 Working days of the initial incident giving rise to the complaint. A meeting shall be held between

Collective Agreement 2018-2021 representatives of the Employer and the Union within 21 Working days of the filing of the grievance. The grievance shall be answered in writing by the Union within 21 Working days of such meeting.

23.05 Referral to Arbitration

Failing settlement of any grievance under the foregoing procedure, the grievance may be submitted to arbitration as provided in Article 24. If no written notice of referral to arbitration is received within 35 Working days after the decision under Step 2 has been communicated to the

Association, the grievance shall be deemed to have been abandoned.

23.06 Any step of the Grievance Procedure may be waived by mutual agreement in writing between the Employer and the Union.

23.07 If a grievance is resolved during the grievance procedure, the settlement shall be reduced to writing and countersigned by the Union representative and the

Employer's representative within 21 Working days of the settlement. Such settlement shall be final and binding upon the Employer, the Union and the members concerned.

23.08 Both sides agree to provide the other with non-confidential, non-privileged documentation relevant to the grievance to ensure the open, fair, and expeditious resolution of the grievance. However, the failure to produce such documentation shall not detract from the strict application of the time limits in the grievance and arbitration procedures.

23.09 The time limits set out in this Article 23, Grievance

Procedure, are mandatory and failure to comply strictly with such time limits, except by the written agreement of the parties, shall result in the grievance being deemed to have been abandoned.

23.10 No technical violation or irregularity occasioned by clerical, typographical or technical error in the written specification of the grievance shall prevent the substance of a grievance from being heard and judged on its merits.

ART 24 - IACRB ITLRATEION

24.01 Where either party wishes to have a grievance referred to arbitration it shall give written notice of such referral to the other party within the time limits set out in Article 23.05 above, and at the same time appoint its nominee to the Arbitration Board. Within 21 Working days of the receipt of such notice, the other party shall appoint its nominee, provided that if such party fails to appoint its nominee, the

Minister of Labour for the Province of Ontario shall have power to effect such appointment upon application by the party invoking the arbitration procedure. The two nominees shall attempt to select, by agreement, a chairperson of the Arbitration Board. If the nominees are

Collective Agreement 2018-2021 unable to agree on a Chair, the Minister of Labour for the Province of Ontario shall have power to effect such appointment upon application by the party invoking the arbitration procedure.

24.02 No person may be appointed as an arbitrator who has been involved in an attempt to negotiate or settle the grievance.

24.03 The Arbitration Board shall not be authorized to make any decision inconsistent with the provisions of this Agreement, nor to alter, modify, add to, or amend any part of this Agreement.

24.04 The decision of a majority of the Board or, where there is no majority, the decision of the chairperson, will be final and binding upon the parties hereto and the member(s) concerned.

24.05 Each of the parties hereto will bear the expense of the nominee appointed by it and the parties will share equally the fees and expenses of the chairperson of the Arbitration Board.

24.06 The time limits set out in this Article 24, Arbitration, are mandatory and failure to comply strictly with such time limits, except by the written agreement of the parties, shall result in the grievance being deemed to have been abandoned.

24.07 Single Arbitrator

By mutual agreement the parties may elect to have a single arbitrator hear the matter in dispute instead of a three-person board. In such case, each party shall bear one-half the cost of the fees and expenses of the arbitrator. The party wishing to submit the issue to arbitration should indicate in its notice of intent to arbitrate, that it would like the matter heard by a single arbitrator. The recipient of the notice shall inform the other party within seven calendar days of receipt of the notice if it is agreeable or not to the matter being heard by a single arbitrator. Failing agreement within 21 calendar days or such time as agreed by the parties, clause 24.01 shall be followed. The single arbitrator shall be bound by all clauses of Article 24 in the same manner as a Board of Arbitration with the necessary changes being made.

24.08 Mediation

Within seven calendar days of the referral of a grievance to arbitration, the parties may agree to a mediation process. Each party shall bear one-half the cost of the fees and expenses of the mediator. The parties shall engage in this process on the following basis:

- (a) Each party shall make every reasonable effort to resolve the matter;
- (b) Any positions taken or information provided by

Collective Agreement 2018-2021 either party during the mediation shall not be admissible should the matter proceed to arbitration;

(c) This step shall not be used to delay arbitration of a matter,

ARTICLE 25—NO STRIKES OR LOCKOUTS

25.01 The Union agrees that, during the term of this Agreement, it will not authorize or condone any unlawful strike. The Employer agrees that, during the term of this Agreement, it will not illegally lockout members. The terms “strike” and “lockout” shall bear the meaning given them in the Labour Relations Act.

ARTICLE 26—SALARIES AND ALLOWANCES

26.01 The Employer shall pay members at the salary rates, allowances and reimbursements set out in ‘Schedule A’.

26.02 Pay days for full-time members shall be on the Friday immediately following the end of the pay period.

ARTICLE 27—TERM OF AGREEMENT

27.01 This Agreement shall continue in effect until 30 June

2021, and shall remain in effect from year to year thereafter unless either party gives the other party written notice of termination or desire to amend the Agreement.

27.02 Notice that amendments are required or that either party desire to terminate this Agreement may only be given within a period of ninety days prior to the expiration date of this Agreement or, if applicable, to any subsequent anniversary of such expiration date.

27.03 If notice of amendment or termination is given by either party, the other party agrees to meet for the purpose of negotiation within thirty days after the giving of notice, if requested to do so.

Collective Agreement 2018-2021

Editorial process completed on Tuesday March 26, 2019,

Réat Fiftion, 7

Chief inter

Négociateur en chef

For the Union pour le Syndicat e

Patefer Colin,

LUFA President

Président de PAPPUL

For the Union pour le Syndicat

55 of 68.

Collective Agreement 2018-2021

BA

EC

AE0

Effective 1 July 2018, and provided the resulting rate does not exceed the ceiling set out in the table below, pay

(a) A scale increase of 1.5% of the Member's regular salary.

(b) members who are eligible under Article 20.01 shall receive a progress-within-the-rank increment of \$2,750,

Effective 1 July 2019 and provided the resulting rate does not exceed the ceiling set out in the table below, pay

(a) a scale increase of 1.6% of the Member's regular salary.

(b) members who are eligible under Article 20.01 shall receive a progress-within-the-rank increment of \$2,800,

Effective 4 July 2020 and provided the resulting rate does not exceed the ceiling set out in the table below, pay

(a) a scale increase of 1.7% of the member's regular salary.

(b) members who are eligible under Article 20.01 shall receive a progress-within-the-rank increment of \$2,850

Catch-up Fund For

Tenure and tenure-track Members employed by the Les

University at the time of ratification shall receive the following lump sum per year, which will be added to their annual respective base salary, in accordance with Article A.02: continued

July 1, 2018: \$1,000 per year

July 1, 2019: \$1,000 per year

July 1, 2020: \$1,000 per year

A.02 ANNUAL SALARY SCALES AT.0

Any members who are promoted to a higher rank shall not be required to take a loss in salary. If such members' reduced salaries are below the floor salary of the higher rank, they shall receive the floor salary upon promotion. decreased

Collective Agreement 2018-2021

Effective 1 July 2018 A p

Rank Floor Ceiling R

Lecturer \$64,390 | \$85,884 C

Assistant Professor \$77,050 | \$106,692 Pr

Associate Professor \$90,700 | \$137,422 Pr

Full Professor \$109,745 | \$162,814 Pr

Effective 1 July 2019 A p

Rank Floor Ceiling R

Lecturer \$65,420 90,058 C

Assistant Professor \$78,282 111,199 Pr

Associate Professor \$92,061 142,421 Pr

Full Professor \$111,501 | \$168,219 Pr

Effective 1 July 2020 A

Rank Floor Ceiling R

Lecturer \$66,532 | \$94,439 C

Assistant Professor \$79,613 | \$115,939 P

Associate Professor \$93,718 | \$147,692 P

Full Professor \$113,396 | \$173,929 P

A.03 SESSIONAL RATES

PA

(a) Sessional rates of pay shall be as identified in the (a) tables below.

(b) In addition to the Sessional base rate, sessional (b)

Members shall be entitled to:

(i) 4% vacation pay in accordance with the Employment

Standards Act, 2000 of Ontario; however, sessional

Members who have taught in two (2) semesters per year for six (6) consecutive academic years shall be entitled to 6%

vacation pay, until there is a break in service. A break in service shall occur when a Member does not teach in two (2)

semesters in one (1) given academic year;

(ii) a supplemental payment equivalent to 4% of the base rate of pay as pay in lieu of benefits,

Sessional rates (for other than distance education Ta courses) for members without establishment: co sa

El. | AB. BR. 4m VP_ | 4% ILB Total

July 1, 2018 | 3er | 4.5% | 0.5% | \$6129 | \$245 | \$245 | \$6,619 4

Juy1, 2019 | 3er | 16% | 0.4% \$6,252 \$250 \$250 \$6,752 4" duly 1, 2020 | 3er | 1.7% | 1.3% \$6,440 \$258 \$258 \$6,956 4°j

duly 1, 2018 | 6er | 1.5% | 0.5% | \$12,255 | \$490 \$490 | \$13,235 aej

57 of 66

Collective Agreement 2018-2021

Ju1,2y019 | Ger | 1.6% | 0.4% | \$12,500 \$500 \$500 | \$13,500 1® duly 1,2020 | 6er | 1.7% | 1.3% | \$12,876 \$515 \$515 | \$13,905 A

El. = Economic Increase BR. = Base Rate AE

AB, = Adjustment to Base 4% VP = 4% vacation pay A.B

4% ILB = 4% in lieu of benefits

4%

Sessional rates (for other than distance education

Ta courses) for members with establishment: co ave

El | ag | BR | 4%ve | ans | Total suiy 4.2018 | Sor | 1.5% | 05% | \$6274 | \$251 | \$251 | \$6.76 te uy 1.2019 | Sor | 1.6% | 04% | \$6.39 | \$256 | \$255 | \$6,911 te

July 1, 2020 | Ser | 1.7% | 1.3% | \$6,591 \$264 | 5264 | \$7,119 ter

Ju1,208 | 6er | 1.5% | 05% | st2547 | ss02 | ss | stasst de

Juy 1.2019 | 6er | 1.6% | 04% | si27e8 | est? | sst2 | \$13,822 tej

Ju 1,2020 | sor | 4.7% | 13% | statg2 | s527 | 527 | \$14,236 se

El. = Economic Increase BR. = Base Rate AE

A.B. = Adjustment to Base 4% VP = 4% vacation pay

AB

4% ILB = 4% in lieu of benefits

4%

(c) If a class is cancelled by the university, there shall be no (c) loss of regular earnings for the sessional teacher. l'en sal

A.0

A.04 DISTANCE EDUCATION

Éla

Development of a course

The development of a distance education course shall be L'é considered as twice the credit value of the course. This éq shall also be used for determining payment to sessional ser members. par

Where the development of a distance education course is Lor not included as part of a full time members normal da workload, the payment shall be an overload payment based y a on the equivalence set out above. A member may also sur agree to some combination of normal workload assignment au plus paid overload as appropriate. et

Revision of a Course Ré

Where the revision of a distance education course is part of Lo a full-time member's normal warklaad assignment, it shall ch be considered as equivalent to the credit value of the co course.

Collective Agreement 2018-2021

Supervision of a Course Su

Where the supervision of a distance education course is Lor part of a full-time member's normal workload assignment, it la shall be considered as equivalent to the credit value of the co course.

Where the supervision of a distance education course is not Lor part of a full-time member's normal workload assignment or da where it is assigned to a Sessional appointee, the member lor shall be compensated a minimum of \$1000 for a six-credit reę course (or \$500 for a three-credit course) or at the rate po identified below, whichever is greater: Sui de

El. | AB. BR. en 4% ILB Total duly 1,2018 | 3cr | 1.5% | 0.5% \$122 \$5 \$5 \$132 ij

July 1, 2019 | Ger | 1.6% | 0.4% \$124 \$6 \$5 \$134 1ej duly 1,2020 | Ser | 1.7% | 1.3% \$128 \$5 \$5 \$138 4"

Juy 1,2018 | 6er | 1.5% | 05% | s2as | sto | st0 | \$265 pr

Ju 1,2018 | 6e | 16% | 04% 8250 \$10 \$10 \$270 1j duly 1, 2000 | ser | 1.7% | 13% \$258 \$10 \$10 \$278 4j

E.I. = Economic increase BR. = Base Rate AE

AB, = Adjustment to Base 4% VP = 4% vacation pay A.B

4%

4% ILB = 4% in lieu of benefits

(*)

(*) Sessional Members who have taught in two (2) se semesters per year for six (6) consecutive academic years con shall be entitled to 6% vacation pay, until there is a break in jus service. A break in service shall occur when a Member does de not teach in two (2) semesters in one (1) given academic de year. do

Po

For online courses where the core course material and l'or activities are mediated through a web-based learning bia management system and where students are regularly and

We frequently interacting with each other and/or with the fré instructor on-line and with a substantial portion of the grade lig being for this participation, the Employer would pay 10% sur more than is paid for the regular distance course. qu'

AP0

A.05 OVERLOAD PAYMENTS

(a) The Parties agree that overload teaching or administrative duties assigned to members above the established practice at the University are undesirable.

(b) Subject to Article A.06 c), full-time members shall not be assigned overload duties in excess of the equivalent of one full course per academic year.

Collective Agreement 2018-2021

(c) When a member is assigned an overload, the member shall be paid at the following rates:

Full course (6 credits) Half course (3 credits)

July 1, 2018 \$9,792 \$4,897

July 1, 2019 \$9,929 \$4,966

July 1, 2020 \$10,088 \$5,045

A.06 4000 SERIES COURSES A.0

(a) The set of 4000-series courses required for honours (a) degrees are of two kinds: classroom courses that follow a lecture and seminar format requiring substantial preparation by the member; and individual or independent studies or research courses or placements.

(b) 4000 series courses shall not automatically be part of a member's normal teaching workload; however, a mandatory course may be part of a member's normal teaching workload as approved under Article 10.07.

(c) Where a 4000 series course is not part of a member's normal teaching workload or has been assigned to sessional appointee, the member shall be compensated at the rate of \$500 (6 credit course) or \$250 (3 credit course) per student times the number of students registered in that course to the maximum of the overload rate. Such courses shall not be considered in determining the limit for overloads.

(d) No more than 6 credits per program shall be assigned (d) to sessional Members, per academic year.

(e) Notwithstanding the foregoing, in an academic year, (e) classroom-based required 4000 series courses will be assigned by the President as part of a member's normal teaching load according to the provisions of Article 10.07 on the following basis: i) A minimum of one such course will be offered in every academic year in each Department or programme, where it is required. ii) The employer is able to assign mandatory overloads to members for the 4000 series courses where there is student need and no one in the Department volunteers.

(f) No member shall assume the responsibilities of a 4000 series course until a contract has been provided by the Employer and has been signed by both the member

Collective Agreement 2018-2021 and the Employer.

4.07 PROFESSIONAL EXPENSE RE-IMBURSEMENT A0

A0 ALLOWANCES PE

(a) Full-time members shall receive an annual professional expense re-imbursement of \$2500

(b) Sessional appointees shall receive professional expense reimbursement in the following amounts:

(i) for distance education: \$5.50 per student, to a maximum of \$185 for a three credit course and \$370 for a six credit course;

(ii) for live courses: \$185 per three-credit and

\$370 for a six credit course; or,

{ii} for live courses offered by those on the roster,

\$200 per three-credit and \$400 for a six-credit course.

The re-imbursement shall be for all expenditures related to conference travel, registration in learned societies, professional/academic upgrading, books and other materials directly related to research and teaching, equipment related to research, and subscriptions to academic journals.

(d) Payment is subject to the submission of original receipts and to the approval of the President.

(e) Re-imbursement is available to members on approved sabbatical or study leave.

(f) Equipment purchased with these funds remains the property of the University.

(g) Payment to full-time members is subject to the submission of original receipts dated within or regarding activities within the applicable twelve-month period and to the approval of the President.

If the member was eligible as a full-time employee for a professional allowance the previous year, then receipts dated within or regarding activities within the two months (May, June) immediately preceding the applicable twelve-month period may also be submitted for reimbursement.

Payment to a Sessional appointee is subject to the submission of original receipts dated within the period of employment and to the approval of the

President. In the semester in which the allowance is earned, sessional members on the roster may request that their professional allowance be carried forward for up to two years. This request shall not be unreasonably denied.

(O) Full-time Members may carry forward any unused portion of the professional allowances for two years.

4.08 SESSIONAL COURSE CANCELLATION = \$\$ AO

P

Where a Sessional appointee has been hired and signed a Lo contract to prepare a course for delivery, cancellation of the co course shall result in a payment to the member as follows: l'a les

(a) For live courses, \$750; and,

(b) For distance courses, \$150.

4.09 MOVING EXPENSES AD.0

Upon appointment, fulltime tenure-track members are Le entitled to reimbursement from the Employer for moving au expenses subject to the following conditions: l'E

(a) All claims for re-imbursement must be accompanied by original receipts;

(b) The Employer shall fully reimburse expenses to a maximum of \$4000.

(c) Moving expenses include:

(i) Moving, packing, crating, and unpacking of household goods and personal effects.

(ii) Transfer of family by the most economical means.

(iii) Reasonable living expenses while travelling to

Sudbury;

(iv) One advance visit for the purpose of securing housing.

(4) Moving expenses paid to a new member will constitute a loan made by the Employer. This loan will be retired when the member has completed three years of continuous service to the University, each year being equivalent to one-third of the reimbursement of the loan. Should the member leave the University before completing three years of continuous service, the member must reimburse the Employer for the remaining unretired portion of the loan.

Collective Agreement 2018-2021

APPE

MEMORANDUM betw

LAURENTIAN UNIVERSIT an

UNIVERSITY

SUBJECT: Amendments to the Scope of the

WHEREAS the administration has indicated that

WHEREAS the University is seeking LUFA's bargaining unit (Article 4.01- Bargaining Unit Sco

WHEREAS the Union is prepared to agree to conditions are met.

The Parties agree that:

1) The administration agrees that the c

LUFA member;

2) The administration also agrees that th

3) The parties agree that the following collective agreement:

4.01 Bargaining unit scope

The Employer recognizes the full and part-time academic st the Université de Sudbury/U

Sudbury save and except Sen

63 of 66

Collective Agreement 2018-2021 level of Dean, the—Presid
Chaplain,_Directer—ef Advan
Director.
Réal Fillion
64 of 66

Collective Agreement 2018-2021

ANN

PROTOCOLE en

L'ASSOCIATION DES PROFESS

DE L'UNIVERSITE e

L'UNIVERSITE

OBJET : Modifications à la définition de l'Un

ATTENDU QUE l'administration a manifesté son

ATTENDU QUE l'Université souhaite obtenir l'a l'unité de négociation (article 4.01, « Compositi les doyens; et,

ATTENDU QUE le Syndicat est disposé à conditions suivantes soient remplies.

Les Parties conviennent que :

1) L'administration convient que la cré déplacement d'un Membre;

2) L'administration convient également q de l'unité de négociation;

3) Les parties conviennent que les mod dans la Convention collective:

4.01 Composition de l'Unité de né

L'Employeur reconnaît le Syn tout le personnel universitaire bibliothécaires professionnels of Sudbury dans la ville du Gr
chef de l'Université et des a

65 of 66

Collective Agreement 2018-2021 rang équivalent ou supérie

Fa = ira = À Bria

Réal Fillion

66 of 66